

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.106767 of 2017

National Database and Registration Authority (NADRA)

Vs.

Khalid Khan & another.

JUDGMENT

DATE OF HEARING:	18.05.2026
PETITIONER BY:	Mr. Jamil Khan, Advocate.
RESPONDENTS BY:	Mr. Shahid Mahmood, Advocate.
ON COURT’S CALL:	Raja Khurram Shahzad, Deputy Attorney General for Pakistan along with Hamid Rafique, Law Officer NADRA and Ms. Fiza Shahid, Director General, NADRA Lahore.
LEGAL ASSISTANCE BY:	Mr. Muhammad Farooq-e-Azam, Civil Judge/Research Officer, Lahore High Court, Lahore.

MOHSIN AKHTAR KAYANI, J:- Through this civil revision, the petitioner-NADRA has assailed the concurrent findings of the judgment and decree dated 19.01.2017, passed by learned Senior Civil Judge, Sialkot, and the judgment and decree dated 23.08.2017, passed by learned Additional District Judge, Sialkot, whereby the suit for declaration filed by the respondents has been decreed concurrently with a direction to the petitioner-NADRA to issue the CNICs of the respondents.

2. Learned counsel for the petitioner-NADRA contends that the respondents filed a suit whereby respondent No.1 Khalid Khan claims that he was born on 04.04.1986 and his CNIC was issued on 12.05.2009 with the expiry date as 30.04.2016, whereas respondent No.2 Atta Ullah was born on 02.01.1989 and he was issued his CNIC on 21.03.2009, which

expired on 28.02.2019. Learned counsel further contends that the CNICs of both these respondents were blocked by NADRA by declaring them as well as their family members to be in the alien category, and the matter was referred to the Committee for verification, which confirmed the alien category. As a result, the CNICs could not be issued rather the respondent/plaintiffs have to obtain a certificate from the Federal Government under Section 19 of the Pakistan Citizenship Act, 1951 and the civil suit is not competent.

3. Conversely, learned counsel for the respondents contends that both the Courts below have concurrently declared the respondents to be Pakistani citizens and it is their inalienable right to receive CNICs from NADRA and as such there is no evidence to demonstrate that the respondents are in the alien category.

4. Arguments heard. Record perused.

5. Perusal of the record reflects that the entire dispute revolves around the status of the respondents/plaintiffs, who claim to be Pakistani citizens by birth, whereas the NADRA authorities denied this aspect and declared both the respondents to be in the alien category. I have attended the proposition from the written statement with regard to the plea referred by the petitioner-NADRA, which reflects that the cases of the plaintiffs and their family members were referred to the Joint Verification Committee, including the Special Branch, Intelligence Bureau, and ISI, for further verification of the national status of the respondents/plaintiffs and their family members on 18.05.2016, and their status could not be verified as Pakistani nationals, though the respondents succeeded in obtaining Pakistani CNICs despite their ineligibility and they filed the suit. Hence, the principal onus has shifted upon the respondents in terms of Article 117 of the Qanun-e-Shahadat Order, 1984, to demonstrate that the respondent/plaintiffs, their father as well as their grandfather are Pakistani citizens by birth. In this regard, the defence documents played a key role, especially the enquiry report referred to as Exh.D-5, conducted by officers of the Special Branch, ISI, IB, and police officials of District Sialkot, who

interviewed the father of the respondents/plaintiffs, who claims that he was born in Mehmand Agency in the year 1964 and later on settled in Gujranwala. Surprisingly, his father's name was referred to as Muhammad Umar Khan, for which he intends to change his father's name which, as per his own version, was referred to as Muhammad Toor Zall-e-Khan, but he is not aware as to when his father died and where he died. Similarly, said Muhammad Arif Khan is unaware with respect to his brothers and sisters. All these facts created a suspicion and this has been explained in detail in the enquiry reports referred to as Exh.D-8, Exh.D-9 and Exh.D-10 respectively, whereby the CNICs have been blocked and the respondents/plaintiffs' father has been declared to be in the confirmed alien category. The said reports require technical evidence from the respondents' side to dispel this allegation of alien category. In this regard, the NADRA authorities have issued multiple SOPs as well as revised the same to deal with fraud-marked cases, especially with regard to the alien category under Section 14 of the National Database and Registration Authority (NADRA), Ordinance, 2000 and the respondents are under an obligation to discharge their onus based upon any public record prior to 1979, including a birth certificate, CNIC/NIC, passport, any government job document, any matriculation certificate etc., to demonstrate that the their father was born prior to 1979 in Pakistan and that he and his family members were registered in Pakistan as Pakistani citizens. If there is no such document, then they are to be treated as being in the alien category. Surprisingly, both the Courts below have not considered this aspect.

6. The above explanation has to be considered in the light of a recent judgment of this Court passed in **Civil Revision No.21451 of 2023** titled *“National Database and Registration Authority vs. Khan Agha and six months” (2024 LHC 3142) (approved for reporting and yet to be published in the law journal)*, whereby the NADRA authorities have issued a notification highlighting multiple factors for consideration purposes to adjudicate the rights of an individual, especially for the purposes of verification. However, after the said judgment, the NADRA (National Identity Card) Rules, 2002 have been amended through S.R.O. 132(I)/2025

dated 24th January, 2025 and powers contained with the Verification Board in terms of Rule 20, sub-rule (3), acknowledges the concept of verification through a specific yardstick in the following manner:-

“(3) Without prejudice to the generality of the foregoing powers of the verification boards specified in sub-rules (1) and (2), the verification boards may, where the eligibility of any person is in question, require amongst others the following evidence, namely: -

- (a) a card previously issued to a person;*
- (b) land revenue record dating prior to the year 1979, duly certified or verified by the concerned revenue authorities;*
- (c) Local Certificate or Certificate of Domicile issued prior to the year 1979, duly verified by the concerned authority;*
- (d) Pedigree (shajra-e-nasab) issued and verified by the concerned revenue authorities;*
- (e) Government employment certificate of an individual or blood relative employed prior to the year 1990;*
- (f) verified educational testimonials dating prior to the year 1979 issued by concerned authorities;*
- (g) passport issued prior to the year 1979;*
- (h) any other document issued by the Federal Government, a Provincial Government or a local authority prior to the year 1979 and verified by the concerned issuing authority including arms license, driving license or manual National Identity Card issued prior to the year 1979; and*
- (i) Certificate of Citizenship or Certificate of Registration issued under the Pakistan Citizenship Act, 1951 (I of 1951) or rules made thereunder.”*

The above-mentioned parameters are the tests to be verified by the officials of the Verification Board or a committee or the case may be by the NADRA authorities, including ISI and police authorities in any DLC and if such documents were not available, then the person has to be placed in alien category accordingly.

7. In Pakistan, during and after the post-Afghan war, all the refugees came to Pakistan and managed to obtain their NICs or CNICs respectively

and changed their identities despite the fact that they are refugees or Afghan citizens. Therefore, all these cases have to be dealt with in terms of the NADRA Ordinance, 2000, which is also evident in this case where notices in terms of Sections 17 and 18 of the Ordinance *ibid.* were issued in the names of the respondents through Exh.D-1, Exh.D-2 and Exh.D-3 respectively. Both the respondents and their father were given notices for the purposes of verification of national status by the Joint Verification Committee through Exh.D-4, and pursuant to their report, Exh.D-5 to Exh.D-10 were issued verifying the status of the respondents as being in the alien category. I have also asked the learned counsel for the respondents to demonstrate through any documentary evidence prior to 1979 to establish their relationship with Pakistan on the basis of any public record, which was not answered with any supporting material. I have attended the judgments of the Courts below, which have gone wrong while appreciating the position in terms of Article 70 read with Article 71 of the Qanun-e-Shahadat Order, 1984 which deals with the proof of facts by oral evidence and the nature of oral evidence to be direct. As such, both the respondents who appeared in the witness box have no knowledge about the registration of their father in Pakistan, nor do they have any documentary proof to dispel the suspicion regarding their citizenship. Therefore, it is not a simple case where the Joint Verification Committee report can be disregarded, especially when the enquiry was conducted by the officials of ISI, NADRA and police authorities, in which no justiciable answer was given by the father of the respondents.

8. In view of the above discussion, this Court is of the view that in the presence of the documentary evidence submitted by NADRA, especially with regard to the Joint Verification Committee reports (Exh.D-5 to Exh.D-10), the respondents are under obligation to demonstrate their legal status in Pakistan prior to 1979 through any affirmative evidence showing that they, including their father and grandfather, are Pakistani citizens, which is a missing part in this case. Both the courts below have not attended this aspect especially when it deals with the sensitive issue of Afghan refugees who obtained their National Identity Cards by playing fraud in connivance

with the officials of old registration department as well as NADRA in some cases.

9. Besides the above referred scenario, I have attended the judgments and decrees passed by the learned civil court as well as the appellate court, which reflect that the same have been passed in a haphazard manner and completely ignoring the fact that the CNICs of the respondents/plaintiffs and their all other family members have been marked in the confirmed alien category by NDWH initially on the recommendations of Vigilance Branch, RHO, NADRA, Lahore and thereafter, the case of the respondents/plaintiffs and their other family members has been referred to a joint verification committee including Special Branch, Intelligence Bureau, and ISI for further verification of the national status of the respondents/plaintiffs and their other family members, who, vide letter No.3367/SB.GR/VC dated 18.03.2016, reported that the respondents/plaintiffs and their family members could not be verified as Pakistani nationals and they succeeded in obtaining Pakistani CNICs despite being ineligible. However, both the learned trial court as well as the appellate court did not consider the relevant facts and documents produced by the appellant.

10. In revisional jurisdiction, this Court has the ample power to attend the proposition of considering the admissibility of evidence already recorded by the courts below, however, when the primary onus was not discharged in terms of Article 117 of the Qanun-e-Shahadat Order, 1984 and the courts below have exercised the jurisdiction wrongly and not attended the proposition under the law, then the revisional court has the power to correct the wrong accordingly.

11. I have considered the entire case on the test laid down in **Khan Agha's case** *supra* where a detailed view has been rendered by the Lahore High Court considering the powers of NADRA, to perform any other function and exercise any other power as may be entrusted to or vested in it by the Federal Government in terms of Section 5, sub-section 4, clause (f) of the NADRA Ordinance. Similarly, Section 8(1) of the NADRA

Ordinance provides that Federal Government may by rules provide for registration of different persons or class thereof, wherever they may be including citizens, foreigners, immigrants and for different things or classes thereof. Section 9(1) of the NADRA Ordinance mandates that every citizen in or outside from Pakistan who has attained the age of 18 years shall get himself and a parent or guardian of every citizen who has not attained that age shall, not later than one month after the birth of such citizen, get such citizen registered in accordance with the law. Section 18 of the NADRA Ordinance deals with the power to cancel, impound or confiscate cards issued thereunder, considering the eligibility of any person whether he is entitled to have the CNIC and the said provisions also grant right of appeal to the Federal Government with right of hearing to the aggrieved person. Therefore, considering the preamble as well as the overall jurisdictional sphere of NADRA law, it appears that it is a specialized statute covering the concept of registration of every individual citizen in Pakistan side by side with the mandate of the Pakistan Citizenship Act, 1951, which has separate hierarchy to deal with the citizenship issues and the overall view reflects that the individuals usually filed a direct civil suit which is not maintainable in terms of **Khan Agha's case** *supra* where it was held as under:-

“This is also the mandate of Section 9 of the CPC which confers plenary jurisdiction on civil courts to "try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred for which a general or special law is in force." In tandem with the above rule of law is the settled proposition that special laws prevail over general provisions. Therefore, it is imperative that as a normal rule, if a statute creates a right or liability not existing in common law and provides a machinery for enforcing that right, such remedies should be fully exhausted before resorting to the Court of plenary jurisdiction or a constitutional Court, as the case may be, depending upon the facts and circumstances of a particular case, unless the impugned action is inherently without jurisdiction, coram non judice, void ab initio, ultra vires, mala fide or illegal. Reliance in this regard is placed on cases titled "West Punjab Government versus Pindi-Jhelum Valley Transport Ltd., Rawalpindi and six others" (PLD 1953 Lahore 339) and "Muhammad Siddique (Deceased) through LRs and Others

versus Mst. Noor Bibi (Deceased) through LRs and Others" (2020 SCMR 483). The same principle was applied in the context of Section 18 of the NADRA Ordinance in cases titled "Najeebullah and others versus Director NADRA, Balochistan, Quetta and others" (PLD 2016 Balochistan 1) and "Gul Shereen Bibi versus Federal Government of Pakistan through Secretary Ministry of Interior and 5 others" (2016 CLC 1928). Hence, direct resort to a Court of competent jurisdiction or to a constitutional Court in presence of alternate remedies provided by law would ordinarily make the grievance not maintainable.

12. Besides the above referred view rendered by the Lahore High Court, it is important to consider the mandate of Section 9 of the Code of Civil Procedure, 1908, which deals with the express and implied bar on the jurisdiction of the civil court as well as the maintainability of a civil suit in the presence of a self-contained special law. Section 9 of the Code of Civil Procedure, 1908, confers plenary jurisdiction upon civil courts to try all suits of a civil nature excepting suits for which their cognizance is either expressly or impliedly barred by any general or special law in force. The civil court is, therefore, the court of ultimate jurisdiction, yet where the legislature has carved out a particular field and entrusted its adjudication to a specialized forum, the cognizance of the civil court over that field stands ousted, whether by express words or by necessary implication, and a litigant who has an appropriate remedy before such a forum is not permitted to resort to a civil suit in the first instance, as held in **2007 SCMR 262** (*Evacuee Trust Property Board and others vs. Mst. Sakina Bibi and others*) and **PLD 2022 SC 699** (*Nausher vs. Province of Punjab through District Collector, Khanewal and another*). Although the Pakistan Citizenship Act, 1951, the Passport Act, 1974 and the NADRA Ordinance, 2000 do not in terms oust the jurisdiction of civil courts, they do so by necessary implication. Each is a self-contained code that regulates every aspect of citizenship, passports and Computerized National Identity Cards, respectively, and each furnishes a complete machinery of alternate remedies by way of appeal, revision or review against adverse order. The conferment of such self-contained mechanism, read with the settled rule that a special law prevails over a general provision, displaces the general

jurisdiction of the civil court over these subjects. It is well established that where a statute creates a right or liability not existing in common law and at the same time provides the machinery for enforcing that right, the remedy so provided must be fully exhausted before resorting to a court of plenary jurisdiction or to a constitutional court, as the case may be. A special remedy provided by law may not be bypassed, nor may the highest forum within the statutory hierarchy be left unexhausted by direct recourse to the civil court. It has further been held that ouster of the civil courts' jurisdiction is never lightly inferred. A provision excluding general jurisdiction is to be construed strictly. There is a presumption against ouster and exclusion must be expressed in clear and unequivocal terms or arise by necessary implication, the case falling squarely within the letter and spirit of the barring provision before it is given effect, as held in **PLD 1997 SC 3** (*Abbasia Cooperative Bank (Now Punjab Provincial Cooperative Bank Ltd.) through Manager and another vs. Hakeem Rafiz Muhammad Ghaus and 5 others*) and **2022 CLC 775** (*Bahawalpur Medical and Dental College vs. Pakistan Medical Commission through Secretary and others*), **2022 SCMR 1501** (*Messrs Sui Northern Gas Pipelines Limited (SNGPL) vs. Messrs Noor CNG Filling Station*), and **PLD 2023 SC 340** (*Shah Zaman Khan and others vs. Government of Khyber Pakhtunkhwa through Chief Secretary, Peshawar and others*). The bar operates only so long as the special authority acts within and in accordance with the statute that confers its power. Where an authority transgresses its jurisdiction or its order, tested against the powers available under the conferring statute, is found to be without jurisdiction, the statutory bar does not attach and a civil suit remains competent. The civil court retains, even where its ordinary cognizance is barred, a limited supervisory jurisdiction to examine whether the act, proceedings, or order of the special forum was done, taken, or made in accordance with law, as held in **2022 SCMR 584** (*Messrs Mardan Ways CNG Station vs. General Manager SNGPL and others*) and **PLD 2022 SC 699** (*Nausher vs. Province of Punjab through District Collector, Khanewal and another*). Accordingly, the order or action of such an authority is immune from challenge before the civil court only where: (a) the authority

was validly constituted under the Act; **(b)** the order or action was not *mala fide*; **(c)** the order or action was one that could lawfully be passed or taken under the statute conferring the exclusive jurisdiction; and **(d)** the principles of natural justice were observed. Unless all these conditions are satisfied, the order is open to scrutiny. In short, the bar yields where the impugned action is inherently without jurisdiction, coram non judice, void ab initio, ultra vires, mala fide, or illegal, as held in the case of **Abbasia Cooperative Bank** (*supra*). Therefore, direct resort to a court of competent jurisdiction or to the constitutional court in the presence of alternate remedies provided by a self-contained special law would ordinarily render the grievance not maintainable, save where the impugned action falls within the recognized exceptions noted above.

13. In the present case, the pivotal question requiring determination is whether a person whose citizenship status has been questioned by NADRA can directly invoke the jurisdiction of the civil court, or whether the matter is required to be adjudicated within the statutory framework provided in the Pakistan Citizenship Act, 1951, and the NADRA Ordinance, 2000. At the outset, it is necessary to appreciate the distinction between matters pertaining to identity verification and those relating to citizenship determination. The NADRA Ordinance, 2000, principally deals with the registration, maintenance, verification, correction, suspension, and cancellation of identity documents and database entries. Conversely, the Pakistan Citizenship Act, 1951, is a special enactment governing acquisition, retention, renunciation, deprivation, and determination of citizenship. Therefore, while NADRA may verify the correctness of information contained in its database and examine the genuineness of identity documents, the ultimate determination regarding the status of a person as a citizen of Pakistan remains subject to the provisions of the Pakistan Citizenship Act, 1951. The superior courts have consistently held that where special statutes provide a complete mechanism for adjudication of disputes, the parties must ordinarily avail the remedies provided therein before invoking the jurisdiction of ordinary civil courts. It is equally settled that the issuance of a show-cause notice, commencement of verification

proceedings, or reference of a matter to a verification board does not by itself furnish a cause of action for the institution of a civil suit. Such proceedings are merely investigative in nature and are intended to enable the competent authority to ascertain the true factual and legal position before arriving at a final determination. In **PLD 2017 Sindh 585** (*Muhammad Umar vs. Federation of Pakistan through Secretary, Ministry of Interior, Islamabad and 2 others*), it was held that although NADRA possesses authority to scrutinize and verify citizenship-related claims, any adverse action affecting the rights of a citizen must conform to due process and the principles of natural justice. The court emphasized that the affected person must be afforded a meaningful opportunity of hearing before any final action is taken. Likewise, the superior courts have repeatedly observed that statutory authorities must be permitted to complete the proceedings entrusted to them by law, and judicial intervention at a preliminary stage is granted only where the proceedings are patently without jurisdiction, mala fide or coram non judice. The controversy becomes more significant where the dispute concerns dual nationality, citizenship by birth, citizenship by descent, naturalization, renunciation, or deprivation of citizenship. Such matters do not merely involve correction of NADRA records but directly concern the legal status of citizenship regulated by the Pakistan Citizenship Act, 1951. In such circumstances, the remedies and procedures contemplated by the Pakistan Citizenship Act, 1951 are required to be exhausted in the first instance. The jurisdiction of the civil court in such matters stands excluded by necessary implication to the extent that Parliament has entrusted the adjudication of citizenship questions to specially designated authorities under special law. It is a settled principle that where the legislature creates a special right and simultaneously provides a special forum and procedure for determination of disputes arising therefrom, recourse to ordinary civil jurisdiction is ordinarily barred. The object of such exclusion is to ensure that technical questions relating to nationality, migration, descent, registration, and dual citizenship are examined by authorities possessing the expertise and statutory competence to decide them. However, exclusion of civil jurisdiction does

not render the actions of statutory authorities immune from judicial scrutiny. Where NADRA or any other authority exercising powers under the Pakistan Citizenship Act, 1951 acts without lawful authority, violates mandatory provisions of law, denies due process, proceeds in a mala fide manner, or passes an order affecting fundamental rights without affording an opportunity of hearing, the constitutional jurisdiction of the High Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 remains available. Such jurisdiction operates as a constitutional safeguard against arbitrary exercise of power and ensures adherence to the rule of law. Consequently, I hold that where the dispute pertains to the very status of a person as a citizen of Pakistan and proceedings in that regard have been initiated by competent authorities under the relevant statutory framework, a civil suit seeking declaration of citizenship or injunction against continuation of such proceedings is ordinarily not maintainable. The appropriate course for the aggrieved person is to participate in the statutory proceedings, avail the remedies provided under the Pakistan Citizenship Act, 1951, and the NADRA Ordinance, 2000, and, if aggrieved by a final order passed without lawful authority or in violation of constitutional guarantees, invoke the constitutional jurisdiction of the High Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Accordingly, the remedy of a civil suit is held to be barred by necessary implication in matters relating to the determination of citizenship status entrusted by law to the competent authorities, whereas a constitutional petition would constitute the appropriate remedy where the grievance pertains to illegality, jurisdictional defect, denial of due process, mala fide exercise of authority, or infringement of fundamental rights by statutory functionaries. Considering this entire discussion, no direct civil suit or even a writ petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 is entertainable in any manner.

14. The above-mentioned concept was not appreciated by the courts below and the trial court proceeded with the suit rather it is obligatory upon the courts below to reject the plaint where plaintiff i.e. the individual has not attended the alternate remedies provided in the special law. Therefore,

the instant civil revision in terms of Section 115 CPC is **allowed** as the jurisdiction vested with the NADRA authorities as well as the Federal Government at present could not be exercised by the civil court. As a result whereof, the impugned judgements and decrees of courts below are hereby set aside and the respondents are directed to approach the NADRA Verification Board within a period of 30 days and demonstrate their eligibility on the basis of yardstick provided in sub rule (3) of Rule 20 of NADRA (National Identity Card) Rules, 2002 amended through S.R.O. dated 24th January 2025 accordingly, and if such request has been filed then NADRA Verification Board shall extend due right of hearing to the respondents and pass the appropriate orders under the law, within 60 days.

15. Before parting with this judgement, this Court feels it appropriate to pass the following practice directions to the learned District Judges and Civil Judges for their guidance accordingly:-

- (1) No civil suit is entertainable directly on any ground unless the attached documents contain the order of NADRA authorities including decision of NADRA Verification Board as conclusive proof of finality of decision regarding status of plaintiff or his family member for which suit has been filed.
- (2) No civil suit is entertainable which does not contain any documentary proof of plaintiff or his/her father/grandfather status prior to 1979 in terms of Rule 20(3)(a) to (i) of NADRA (National Identity Card) Rules, 2002, in case of doubtful status of person.
- (3) At present, any civil suit or appeal which is still *sub judice* in violation of above conditions, the plaintiff or the defendant/appellant or the respondent, as the case may be, shall be given 30 days' time to submit the requisite documents, failing which the suit or the appeal, as the case may be, rejected in terms of Order VII Rule 11 CPC, forthwith.
- (4) All such parties are directed to follow the hierarchy of appeal or representation against the order of NADRA, as the case may be, before the forums provided under the NADRA laws.
- (5) The High Court shall not entertain such writ petition where no decision has been passed or where final remedy of appeal by the NADRA Verification Board and after that by the Federal Government was not exhausted.
- (6) Federal Government shall amend the NADRA Ordinance by including the provision of exclusion clause to confer special jurisdiction to NADRA only and any suit or appeal or revision

pending in any Civil Court or District Court be declared beyond jurisdiction with regard to suspicious/doubtful citizenship matter of any person, which could only be adjudicated by the competent authority under the Pakistan Citizenship Act, 1951.

- (7) NADRA Verification Board shall adjudicate the pending application of any person whose status has not yet verified within 60 days' timeline.
- (8) NADRA shall compile the data of such cases where verification or status of individual is *sub judice* without adopting the process of NADRA laws and draw a strategy by the concerned D.Gs of NADRA after approval of NADRA Policy Board.
- (9) Federal Government shall also provide designated officials, process to deal with the doubtful citizenship cases with timeline to finally decide the cases accordingly.
- (10) NADRA shall make arrangements of two months training of judicial officers regarding NADRA Laws, the process etc. in collaboration with the Punjab Judicial Academy after getting its approval from the Hon'ble Chief Justice of Lahore High Court.

As the matter in hand involves grave public importance as well as practice directions to the Punjab District Judiciary, therefore, a copy of this judgment shall be placed before the Hon'ble Chief Justice, Lahore High Court, Lahore, for kind perusal.

(MOHSIN AKHTAR KAYANI)
JUDGE

APPROVED FOR REPORTING.

JUDGE